

**SUBSTITUTE FOR
HOUSE BILL NO. 5727**

A bill to amend 1978 PA 90, entitled
"Youth employment standards act,"
by amending the title and sections 2, 5, 7, 10, 15, and 20 (MCL
409.102, 409.105, 409.107, 409.110, 409.115, and 409.120), the
title and sections 2, 5, 7, 10, and 20 as amended by 2024 PA 196
and section 15 as amended by 2022 PA 123; and to repeal acts and
parts of acts.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 TITLE
2 An act to provide for the legal employment and protection of
3 minors; ~~to provide for the issuance and revocation of work permits;~~
4 ~~to provide for the registration of employers and employed minors;~~
5 to provide for the regulation of hours and conditions of employment



1 of minors; to prescribe the powers and duties of certain state
 2 governmental officers and entities; to provide for the promulgation
 3 of rules; to provide for the enforcement of this act; to prescribe
 4 penalties; and to repeal certain acts and parts of acts.

5 Sec. 2. As used in this act:

6 (a) "Department" means the department of labor and economic
 7 opportunity.

8 (b) "Director" means the director of the department or the
 9 director's designee.

10 (c) "Employ" means engage, permit, or allow to work.

11 (d) "Employer" means a person, firm, or corporation that
 12 employs a minor, and includes this state or a political subdivision
 13 of this state, an agency or instrumentality of this state, and an
 14 agent of an employer.

15 ~~(e) "Issuing officer" means the chief administrator of a~~
 16 ~~school district, intermediate school district, public school~~
 17 ~~academy, or nonpublic school, or a person authorized by that chief~~
 18 ~~administrator in writing to act on the chief administrator's~~
 19 ~~behalf.~~

20 **(e) (f)** "Minor" means a person ~~under~~ **who is less than** 18 years
 21 of age.

22 ~~(g) "Registration system" means the registration system~~
 23 ~~created under section 4b.~~

24 **(f) (h)** "Rule" means a rule promulgated under the
 25 administrative procedures act of 1969, 1969 PA 306, MCL 24.201 to
 26 24.328.

27 Sec. 5. **(1)** ~~An issuing officer or the director, as applicable,~~
 28 **employer that employs a minor** shall ~~issue a work permit on an~~
 29 **application by obtain documentation to establish proof of the**



~~minor's age from the minor. desiring employment and after the~~ The
 following papers have been examined, approved, and filed: documents
 may be used to establish proof of the minor's age:

~~(a) A statement of intention to employ the minor, signed by
 the prospective employer or by a person authorized by the
 prospective employer, setting forth the general nature of the
 occupation in which the employer intends to employ the minor, the
 hours during which the minor will be employed, the wages to be
 paid, and other information that the department requires.~~

~~(b) Evidence showing that the minor is of the age required by
 this act. Proof of age must be established by 1 of the following:~~

~~(a) (i) A certified copy of the minor's birth record or any
 other proof of age showing the place and date of birth. certificate.~~

~~(b) (ii) A certified copy of the minor's valid operator's
 license issued by this state clearly showing date of birth.~~

~~(iii) The school record or the school census record.~~

~~(iv) The sworn statement of the minor's parent or guardian,
 together with a corroborating statement of a physician.~~

~~(v) If documentary proof as described in subparagraphs (i) to
 (iv) is not obtainable, the issuing officer or the director, as
 applicable, may accept other documentation as established by the
 rules promulgated under this act.~~

**(c) An age certificate issued by a school of the district in
 which the minor is employed.**

**(d) A photocopy of a passport or visa showing the minor's date
 of birth.**

**(2) An employer that employs a minor shall keep a copy of the
 document used to establish proof of the minor's age under
 subsection (1) for the duration of the minor's employment.**



1 Sec. 7. ~~(1) The issuing officer or the director, as~~
2 ~~applicable, may revoke a permit based solely on the following~~
3 ~~factors:~~

4 ~~(a) Poor school attendance, characterized by repeated erratic~~
5 ~~or unexcused absences, which results in consistent performance of~~
6 ~~school work at a level lower than that which preceded the minor's~~
7 ~~employment. The work permit may be revoked only after the permit~~
8 ~~has been suspended. The suspension must take place upon notice to~~
9 ~~the minor and the employer, and an opportunity to correct the~~
10 ~~deficiency is afforded. The suspension must not exceed 30 days~~
11 ~~after date of notification.~~

12 ~~(b) The minor's employment is in violation of federal or state~~
13 ~~law or of a regulation or rule promulgated under federal or state~~
14 ~~law, and the issuing officer or the director, as applicable, is~~
15 ~~informed of the violation.~~

16 ~~(2) The issuing officer or the director, as applicable, shall~~
17 ~~keep a record of each refusal, suspension, or revocation and the~~
18 ~~reasons for the action. Upon revocation, the minor must be informed~~
19 ~~of the appeal process and be given instructions as to the~~
20 ~~initiation of an appeal.~~

21 **(1) If a minor whose employment is subject to this act is a**
22 **student not in good standing at the minor's school, the school**
23 **shall request the minor's employment information from the minor and**
24 **the minor's parents or guardians. The school shall also provide**
25 **notice to the minor's employer that the minor is a student not in**
26 **good standing.**

27 **(2) If an employer provides a school with information under**
28 **subsection (1) that has a technical error, the school must allow**
29 **the employer 30 days on receipt of the information to correct the**



1 technical error.

2 (3) As used in this section, "student not in good standing"
3 means a student who has any of the following:

4 (a) Attendance issues, including, but not limited to, frequent
5 unexcused absences, truancy, or tardiness.

6 (b) Poor academic performance, including, but not limited to,
7 failing grades or not meeting grade point average or class credit
8 requirements that jeopardizes the student's ability to graduate.

9 (c) Disciplinary issues, including, but not limited to,
10 suspensions, expulsions, or a record of repeated misconduct.

11 Sec. 10. (1) A minor ~~under~~ **who is less than** 16 years of age
12 whose employment is subject to this act may be employed only as
13 follows:

14 (a) During a time that is outside school hours.

15 (b) For not more than 3 hours per day during a week when
16 school is in session.

17 (c) **For not more than 8 hours per day during a week that is**
18 **not a week when school is in session.**

19 (d) ~~(e)~~ Between the hours of 7 a.m. and 9 p.m. during the
20 period that begins on June 1 and ends on Labor Day.

21 (e) ~~(d)~~ Between the hours of 7 a.m. and 7 p.m. during the
22 period that begins on the date immediately following Labor Day and
23 ends on May 31.

24 (f) ~~(e)~~ **For not more than 18 hours either of the following**
25 **during a week when school is in session:**

26 (i) **18 hours of work.**

27 (ii) **A combined 40 hours of both work and school.**

28 (g) ~~(f)~~ For not more than 40 hours during a week that is not a
29 week when school is in session.



(h) For not more than 6 days in 1 week.

(i) For not more than a period longer than a weekly average of 8 hours per day.

(2) As used in this section:

(a) "Outside school hours" means that term as defined in 29 CFR 570.35.

(b) "School hours" means that term as defined in 29 CFR 570.35.

(c) "Week" means that term as defined in 29 CFR 570.35.

(d) "Week when school is in session" means that term as defined in 29 CFR 570.35.

Sec. 15. (1) A ~~work permit must not be issued authorizing the employment of a~~ minor 16 years of age or older **shall not be employed** in, about, or in connection with that part of an establishment where alcoholic beverages are distilled, rectified, compounded, brewed, manufactured, bottled, consumed, sold at retail, or sold for consumption on the premises unless the sale of food or other goods constitutes ~~at least~~ **not less than** 50% of the total gross receipts.

(2) This act does not prohibit ~~the issuance of work permits for 14- and 15-year-olds to be employed~~ **from employment** in establishments where alcoholic beverages are sold at retail, if the sale of food or other goods constitutes ~~at least~~ **not less than** 50% of the total gross receipts of the establishment. Minors 14 and 15 years of age must not be employed in, about, or in connection with that part of the establishment where alcoholic beverages are consumed or sold for consumption on the premises.

Sec. 20. (1) The ~~director~~ **department** shall promulgate rules that ~~do all of the following:~~



1 ~~(a) Prescribe~~ **prescribe** standards that are not inconsistent
 2 with this act regarding the working conditions, safety, health, and
 3 personal well-being of minors in various types of employment.

4 ~~(b) Implement this act.~~

5 ~~(2) Subject to subsection (3) and section 4a(5), the~~ **The**
 6 director shall grant deviations from established standards or from
 7 hours by employment if the director determines that it is in the
 8 best interests of the minor and the community. The ~~director~~
 9 **department** shall prescribe procedures for applying and issuing the
 10 deviations.

11 ~~(3) The director shall not grant a deviation under subsection~~
 12 ~~(2) if the deviation allows any of the following:~~

13 ~~(a) A minor to be employed between 12 a.m. and 5 a.m.~~

14 ~~(b) A minor to be employed in, about, or in connection with an~~
 15 ~~occupation that is hazardous or injurious to the minor's health or~~
 16 ~~personal well-being.~~

17 Enacting section 1. Sections 4, 4a, 4b, 4c, 4d, 6, 8, and 9 of
 18 the youth employment standards act, 1978 PA 90, MCL 409.104,
 19 409.104a, 409.104b, 409.104c, 409.104d, 409.106, 409.108, and
 20 409.109, are repealed.